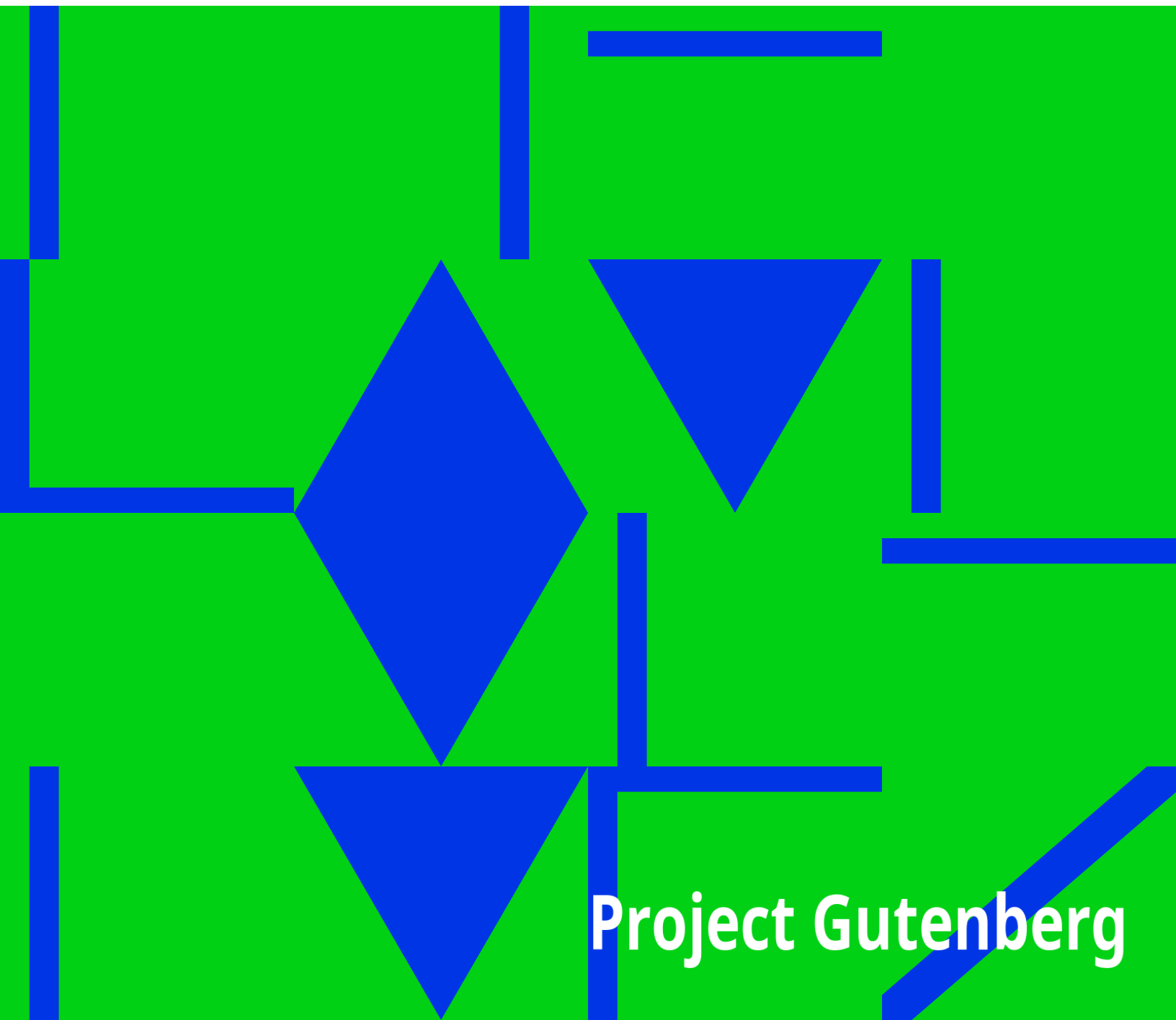


The Last Stetson

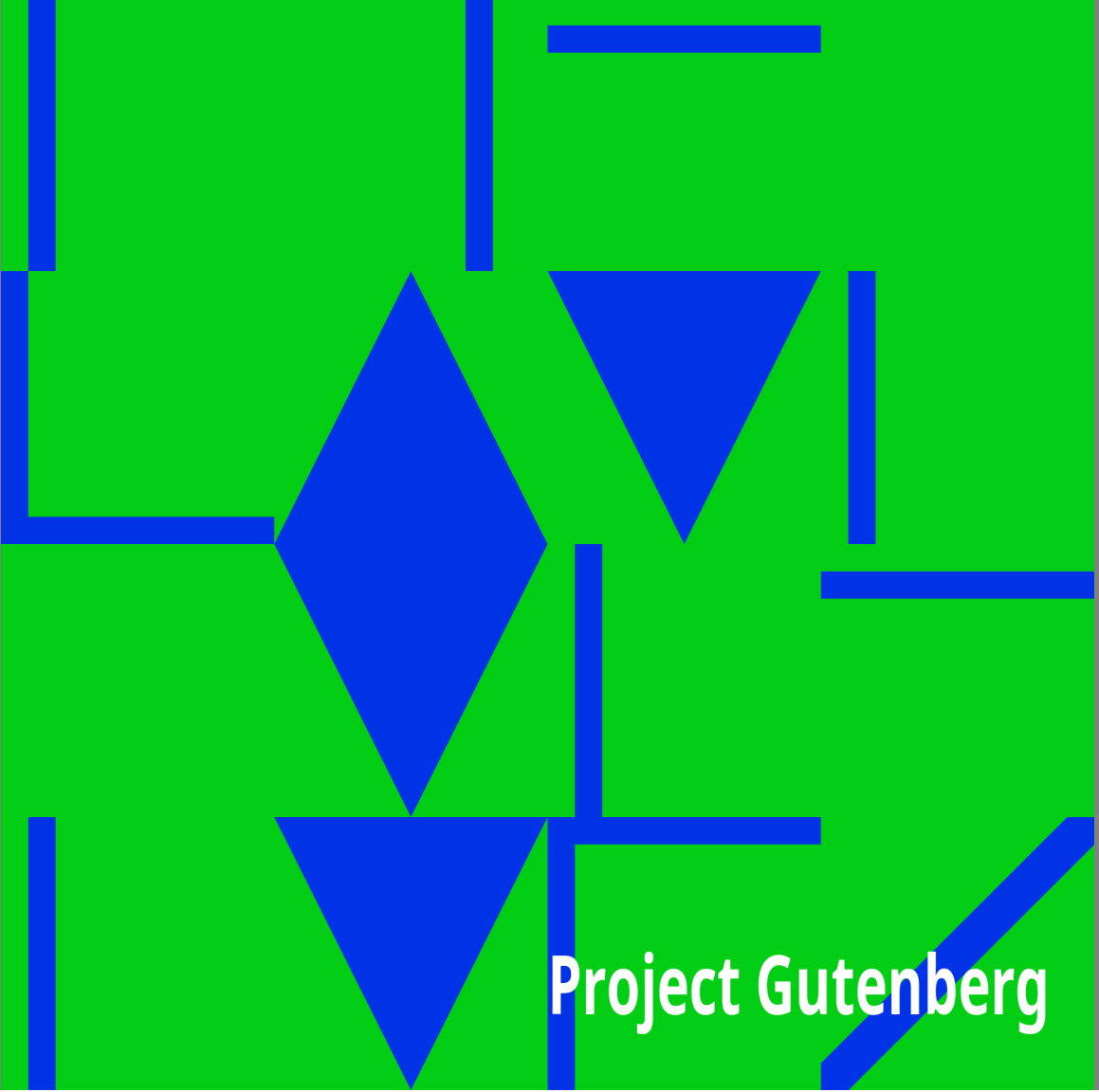
Jr. John Fox

An abstract geometric pattern consisting of various blue shapes (lines, triangles, diamonds) overlaid on a green background. The shapes are arranged in a non-representational, decorative manner.

Project Gutenberg

The Last Stetson

Jr. John Fox

An abstract geometric design featuring a large green square background. Overlaid on this are several blue geometric shapes: a large diamond in the center-left, two inverted triangles (one in the center-right and one in the bottom-left), and several horizontal and vertical lines of varying thicknesses. A diagonal line runs from the bottom-right towards the center. The text 'Project Gutenberg' is written in white at the bottom right.

Project Gutenberg

The Project Gutenberg eBook of The Last Stetson

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Last Stetson

Author: Jr. John Fox

Release date: January 1, 2002 [eBook #3024]

Most recently updated: February 4, 2013

Language: English

Other information and formats: www.gutenberg.org/ebooks/3024

Credits: Produced by David Reed, and David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THE LAST
STETSON ***

THE LAST STETSON

By John Fox Jr.

Contents

I.

II.

III

.

I

V.

V.

I.

A MIDSUMMER freshet was running over old Gabe Bunch's water-wheel into the Cumberland. Inside the mill Steve Marcum lay in one dark corner with a slouched hat over his face. The boy Isom was emptying a sack of corn into the hopper. Old Gabe was speaking his mind.

Always the miller had been a man of peace; and there was one time when he thought the old Stetson-Lewallen feud was done. That was when Rome Stetson, the last but one of his name, and Jasper Lewallen, the last but one of his, put their guns down and fought with bare fists on a high ledge above old Gabe's mill one morning at daybreak. The man who was beaten was to leave the mountains; the other was to stay at home and have peace. Steve Marcum, a Stetson, heard the sworn terms and saw the fight. Jasper was fairly whipped; and when Rome let him up he proved treacherous and ran for his gun. Rome ran too, but stumbled and fell. Jasper whirled with his Winchester and was about to kill Rome where he lay, when a bullet came from somewhere and dropped him back to the ledge again. Both Steve Marcum and Rome Stetson said they had not fired the shot; neither would say who had. Some thought one man was lying, some thought the other was, and Jasper's death lay between the two. State troops came then, under the Governor's order, from the Blue Grass, and Rome had to drift down the river one night in old Gabe's canoe and on Out of the mountains for good. Martha Lewallen, who, though Jasper's sister, and the last of the name, loved and believed Rome, went with him. Marcums and Braytons who had taken sides in the fight hid in the bushes around Hazlan, or climbed over into Virginia. A railroad started up the Cumberland. "Furriners came in to buy wild lands and get out timber." Civilization began to press over the mountains and down on Hazlan, as it had pressed in on Breathitt, the seat of another feud, in another county. In Breathitt the feud was long past, and with good reason old Gabe thought that it was done in Hazlan.

But that autumn a panic started over from England. It stopped the railroad far down the Cumberland; it sent the "furriners" home, and drove civilization back. Marcums and Braytons came in from hiding, and drifted one by one to the old fighting-ground. In time they took up the old quarrel,

and with Steve Marcum and Steve Brayton as leaders, the old Stetson-Lewallen feud went on, though but one soul was left in the mountains of either name. That was Isom, a pale little fellow whom Rome had left in old Gabe's care; and he, though a Stetson and a half-brother to Rome, was not counted, because he was only a boy and a foundling, and because his ways were queer.

There was no open rupture, no organized division—that might happen no more. The mischief was individual now, and ambushing was more common. Certain men were looking for each other, and it was a question of "draw-in' quick 'n' shootin' quick" when the two met by accident, or of getting the advantage "from the bresh."

In time Steve Marcum had come face to face with old Steve Brayton in Hazlan, and the two Steves, as they were known, drew promptly. Marcum was in the dust when the smoke cleared away; and now, after three months in bed, he was just out again. He had come down to the mill to see Isom. This was the miller's first chance for remonstrance, and, as usual, he began to lay it down that every man who had taken a human life must sooner or later pay for it with his own. It was an old story to Isom, and, with a shake of impatience, he turned out the door of the mill, and left old Gabe droning on under his dusty hat to Steve, who, being heavy with "moonshine," dropped asleep.

Outside the sun was warm, the flood was calling from the dam, and the boy's petulance was gone at once. For a moment he stood on the rude platform watching the tide; then he let one bare foot into the water, and, with a shiver of delight, dropped from the boards. In a moment his clothes were on the ground behind a laurel thicket, and his slim white body was flashing like a faun through the reeds and bushes up stream. A hundred yards away the creek made a great loop about a wet thicket of pine and rhododendron, and he turned across the bushy neck. Creeping through the gnarled bodies of rhododendron, he dropped suddenly behind the pine, and lay flat in the black earth. Ten yards through the dusk before him was the half-bent figure of a man letting an old army haversack slip from one shoulder; and Isom watched him hide it with a rifle under a bush, and go noiselessly on towards the road. It was Crump, Eli Crump, who had been a spy for the Lewallens in the old feud and who was spying now for old Steve Brayton. It was the second time Isom had seen him lurking about, and the

boy's impulse was to hurry back to the mill. But it was still peace, and without his gun Crump was not dangerous; so Isom rose and ran on, and, splashing into the angry little stream, shot away like a roll of birch bark through the tawny crest of a big wave. He had done the feat a hundred times; he knew every rock and eddy in flood-time, and he floated through them and slipped like an eel into the mill-pond. Old Gabe was waiting for him.

"Whut ye mean, boy," he said, sharply, "reskin' the fever an' ager this way? No wonder folks thinks ye air half crazy. Git inter them clothes now 'n' come in hyeh. You'll ketch yer death o' cold swimmin' this way attar a fresh."

The boy was shivering when he took his seat at the funnel, but he did not mind that; some day he meant to swim over that dam. Steve still lay motionless in the corner near him, and Isom lifted the slouched hat and began tickling his lips with a straw. Steve was beyond the point of tickling, and Isom dropped the hat back and turned to tell the miller what he had seen in the thicket. The dim interior darkened just then, and Crump stood in the door. Old Gabe stared hard at him without a word of welcome, but Crump shuffled to a chair unasked, and sat like a toad astride it, with his knees close up under his arms, and his wizened face in his hands.

Meeting Isom's angry glance, he shifted his own uneasily.

"Seed the new preacher comm' 'long today?" he asked. Drawing one dirty finger across his forehead, "Got a long scar 'cross hyeh."

The miller shook his head.

"Well, he's a-comm'. I've been waitin' fer him up the road, but I reckon I got to git 'cross the river purty soon now."

Crump had been living over in Breathitt since the old feud. He had been "convicted" over there by Sherd Raines, a preacher from the Jellico Hills, and he had grown pious. Indeed, he had been trailing after Raines from place to place, and he was following the circuit-rider now to the scene of his own deviltry—Hazlan.

"Reckon you folks don't know I got the cirkit-rider to come over hyeh, do ye?" he went on. "Ef he can't preach! Well, I'd tell a man! He kin jus' draw the heart out'n a holler log! He 'convicted' me fust night, over thar in Breathitt. He come up thar, ye know, to stop the feud, he said; 'n' thar was

laughin' from one eendo' Breathitt to t'other; but thar was the whoppinest crowd thar I ever see when he did come. The meetin'-house wasn't big enough to hold 'em, so he goes out on the aidge o' town, 'n' climbs on to a stump. He hed a woman with him from the settlements—she's a-waitin' at Hazlan fer him now-'n' she had a cur'us little box, 'n' he put her 'n' the box on a big rock, 'n' started in a callin' 'em his bretherin' 'n' sisteren, 'n' folks seed mighty soon thet he meant it, too. He's always mighty easylike, tell he gits to the blood-penalty."

At the word, Crump's listeners paid sudden heed. Old Gabe's knife stopped short in the heart of the stick he was whittling; the boy looked sharply up from the running meal into Crump's face and sat still.

Well, he jes prayed to the Almighty as though he was a-talkin' to him face to face, 'n' then the woman put her hands on that box, 'n' the sweetes' sound anybody thar ever heerd come outen it. Then she got to singin'. Hit wusn't nuthin' anybody thar'd ever heerd; but some o' the women folks was a snifflin' 'fore she got through. He pitched right into the feud, as he calls hit, 'n' the sin o' sheddin' human blood, I tell ye; 'n' 'twixt him and the soldiers I reckon thar won't be no more fightin' in Breathitt. He says, 'n' he always says it mighty loud —Crump raised his own voice—"thet the man as kills his feller-critter hev some day got ter give up his own blood, sartin 'n' shore."

It was old Gabe's pet theory, and he was nodding approval. The boy's parted lips shook with a spasm of fear, and were as quickly shut tight with suspicion. Steve raised his head as though he too had heard the voice, and looked stupidly about him.

"I tol' him," Crump went on, "thet things was already a-gettin' kind o' frolicsome round hyeh agin; thet the Marcums 'n' Braytons was a-takin' up the ole war, 'n' would be a-plunkin' one 'nother every time they got together, 'n' a-gittin' the whole country in fear 'n' tremblin'—now thet Steve Marcum had come back."

Steve began to scowl and a vixenish smile hovered at Isom's lips.

"He knows mighty well—fer I tol' him—thet thar hain't a wuss man in all these mountains than thet very Steve—" The name ended in a gasp, and the wizened gossip was caught by the throat and tossed, chair and all, into a corner of the mill.

"None o' that, Steve!" called the miller, sternly. "Not hyeh. Don't hurt him now!"

Crump's face stiffened with such terror that Steve broke into a laugh.

"Well, ye air a skeery critter!" he said, contemptuously. "I hain't goin' to hurt him, Uncl' Gabe, but he must be a plumb idgit, a-talkin' 'bout folks to thar face, 'n' him so puny an' spindlin'! You git!"

Crump picked himself up trembling—"Don't ye ever let me see ye on this side o' the river agin, now"—and shuffled out, giving Marcum one look of fear and unearthly hate.

"Convicted!" snorted Steve. "I heerd old Steve Brayton had hired him to waylay me, 'n' I swar I believe hit's so."

"Well, he won't hev to give him more'n a chaw o' tobaccer now," said Gabe. "He'll come purty near doin' hit hisseif, I reckon, ef he gits the chance."

"Well, he kin git the chance ef I gits my leetle account settled with ole Steve Brayton fust. 'Pears like that old hog ain't satisfied shootin' me hisself." Stretching his arms with a yawn, Steve winked at Isom and moved to the door. The boy followed him outside.

"We're goin' fer ole Brayton about the dark o' the next moon, boy," he said. "He's sort o' s'picious now, 'n' we'll give him a leetle time to git tame. I'll have a bran'-new Winchester fer ye, Isom. Hit ull be like ole times agin, when Rome was hyeh. Whut's the matter, boy?" he asked, suddenly. Isom looked unresponsive, listless.

"Air ye gittin' sick agin?"

"Well, I hain't feelin' much peert, Steve."

"Take keer o' yourself, boy. Don't git sick now. We'll have to watch Eli Crump purty close. I don't know why I hain't killed thet spyin' skunk long ago, 'ceptin' I never had a shore an' sartin reason fer doin' 'it."

Isom started to speak then and stopped. He would learn more first; and he let Steve go on home unwarned.

The two kept silence after Marcum had gone. Isom turned away from old Gabe, and stretched himself out on the platform. He looked troubled. The miller, too, was worried.

"Jus' a hole in the groun'," he said, half to himself; "that's whut we're all comm' to! 'Pears like we mought help one 'nother to keep out'n hit, 'stid o' holpin' 'em in."

Brown shadows were interlacing out in the mill-pond, where old Gabe's eyes were intent. A current of cool air had started down the creek to the river. A katydid began to chant. Twilight was coming, and the miller rose.

"Hit's a comfort to know you won't be mixed up in all this devilment," he said; and then, as though he had found more light in the gloom: "Hit's a comfort to know the new rider air shorely a-preachin' the right doctrine, 'n' I want ye to go hear him. Blood for blood-life fer a life! Your grandad shot ole Tom Lewallen in Hazlan. Ole Jack Lewallen shot him from the bresh. Tom Stetson killed ole Jack; ole Jass killed Tom, 'n' so hit comes down, fer back as I can ricollect. I hev nuver knowed hit to fail." The lad had risen on one elbow. His face was pale and uneasy, and he averted it when the miller turned in the door.

"You'd better stay hyeh, son, 'n' finish up the grist. Hit won't take long. Hev ye got victuals fer yer supper?"

Isom nodded, without looking around, and when old Gabe was gone he rose nervously and dropped helplessly back to the floor.

"'Pears like old Gabe knows I killed Jass," he breathed, sullenly. "'Pears like all of 'em knows hit, 'n' air jus' a-tormentin' me."

Nobody dreamed that the boy and his old gun had ended that fight on the cliff; and without knowing it, old Gabe kept the lad in constant torture with his talk of the blood-penalty. But Isom got used to it in time, for he had shot to save his brother's life. Steve Marcum treated him thereafter as an equal. Steve's friends, too, changed in manner towards him because Steve had. And now, just when he had reached the point of wondering whether, after all, there might not be one thing that old Gabe did not know, Crump had come along with the miller's story, which he had got from still another, a circuit-rider, who must know the truth. The fact gave him trouble.

"Mebbe hit's goin' to happen when I goes with Steve atter ole Brayton," he mumbled, and he sat thinking the matter over, until a rattle and a whir inside the mill told him that the hopper was empty. He arose to fill it, and coming out again, he heard hoof-beats on the dirt road. A stranger rode around the rhododendrons and shouted to him, asking the distance to Hazlan. He took off his hat when Isom answered, to wipe the dust and

perspiration from his face, and the boy saw a white scar across his forehead. A little awestricken, the lad walked towards him.

"Air you the new rider whut's goin' to preach up to Hazlan?" he asked.

Raines smiled at the solemnity of the little fellow. "Yes," he said, kindly. "Won't you come up and hear me?"

"Yes, sir," he said, and his lips parted as though he wanted to say something else, but Raines did not notice.

"I wished I had axed him," he said, watching the preacher ride away. "Uncle Gabe knows might' nigh ever'thing, 'n' he says so. Crump said the rider said so; but Crump might 'a' been lyin'. He 'most al'ays is. I wished I had axed him."

Mechanically the lad walked along the millrace, which was made of hewn boards and hollow logs. In every crevice grass hung in thick bunches to the ground or tipped wiry blades over the running water. Tightening a prop where some silvery jet was getting too large, he lifted the tail-gate a trifle and lay down again on the platform near the old wheel. Out in the mill-pond the water would break now and then into ripples about some unwary moth, and the white belly of a fish would flash from the surface. It was the only sharp accent on the air. The chant of the katydids had become a chorus, and the hush of darkness was settling over the steady flow of water and the low drone of the millstones.

"I hain't afeerd," he kept saying to himself. "I hain't afeerd o' nothin' nor nobody;" but he lay brooding until his head throbbed, until darkness filled the narrow gorge, and the strip of dark blue up through the trees was pointed with faint stars. He was troubled when he rose, and climbed on Rome's horse and rode homeward—so troubled that he turned finally and started back in a gallop for Hazlan.

It was almost as Crump had said. There was no church in Hazlan, and, as in Breathitt, the people had to follow Raines outside the town, and he preached from the roadside. The rider's Master never had a tabernacle more simple: overhead the stars and a low moon; close about, the trees still and heavy with summer; a pine torch over his head like a yellow plume; two tallow dips hung to a beech on one side, and flicking to the other the shadows of the people who sat under them. A few Marcums and Braytons were there, one faction shadowed on Raines's right, one on his left. Between them the rider stood straight, and prayed as though talking with some one

among the stars. Behind him the voice of the woman at her tiny organ rose among the leaves. And then he spoke as he had prayed; and from the first they listened like children, while in their own homely speech he went on to tell them, just as he would have told children, a story that some of them had never heard before. "Forgive your enemies as He had forgiven his," that was his plea. Marcums and Braytons began to press in from the darkness on each side, forgetting each other as the rest of the people forgot them. And when the story was quite done, Raines stood a full minute without a word. No one was prepared for what followed. Abruptly his voice rose sternly—"Thou shalt not kill"; and then Satan took shape under the torch. The man was transformed, swaying half crouched before them. The long black hair fell across the white scar, and picture after picture leaped from his tongue with such vividness that a low wail started through the audience, and women sobbed in their bonnets. It was penalty for bloodshed—not in this world: penalty eternal in the next; and one slight figure under the dips staggered suddenly aside into the darkness.

It was Isom; and no soul possessed of devils was ever more torn than his, when he splashed through Troubled Fork and rode away that night. Half a mile on he tried to keep his eyes on his horse's neck, anywhere except on one high gray rock to which they were raised against his will—the peak under which he had killed young Jasper. There it was staring into the moon, but watching him as he fled through the woods, shuddering at shadows, dodging branches that caught at him as he passed, and on in a run, until he drew rein and slipped from his saddle at the friendly old mill. There was no terror for him there. There every bush was a friend; every beech trunk a sentinel on guard for him in shining armor.

It was the old struggle that he was starting through that night—the old fight of humanity from savage to Christian; and the lad fought it until, with the birth of his wavering soul, the premonitions of the first dawn came on. The patches of moonlight shifted, paling. The beech columns mottled slowly with gray and brown. A ruddy streak was cleaving the east like a slow sword of fire. The chill air began to pulse and the mists to stir. Moisture had gathered on the boy's sleeve. His horse was stamping uneasily, and the lad rose stiffly, his face gray but calm, and started home. At old Gabe's gate he turned in his saddle to look where, under the last sinking star, was once the home of his old enemies. Farther down, under the crest, was old Steve Brayton, alive, and at that moment perhaps asleep.

"Forgive your enemies;" that was the rider's plea. Forgive old Steve, who had mocked him, and had driven Rome from the mountains; who had threatened old Gabe's life, and had shot Steve Marcum almost to death! The lad drew breath quickly, and standing in his stirrups, stretched out his fist, and let it drop, slowly.

II.

OLD Gabe was just starting out when Isom' reached the cabin, and the old man thought the boy had been at the mill all night. Isom slept through the day, and spoke hardly a word when the miller came home, though the latter had much to say of Raines, the two Steves, and of the trouble possible. He gave some excuse for not going with old Gabe the next day, and instead went into the woods alone.

Late in the middle of the afternoon he reached the mill. Old Gabe sat smoking outside the door, and Isom stretched himself out on the platform close to the water, shading his eyes from the rich sunlight with one ragged sleeve.

"Uncl' Gabe," he said, suddenly, "s'posin' Steve Brayton was to step out'n the bushes thar some mawnin' 'n' pull down his Winchester on ye, would ye say, 'Lawd, fergive him, fer he don't know whut he do'?"

Old Gabe had told him once about a Stetson and a Lewallen who were heard half a mile away praying while they fought each other to death with Winchesters. "There was no use prayin' an' shootin'," the miller declared. There was but one way for them to escape damnation; that was to throw down their guns and make friends. But the miller had forgotten, and his mood that morning was whimsical.

"Well, I mought, Isom," he said, "ef I didn't happen to have a gun handy."

The humor was lost on Isom. His chin was moving up and down, and his face was serious. That was just it. He could forgive Jass—Jass was dead; he could forgive Crump, if he caught him in no devilment; old Brayton even—after Steve's revenge was done. But now—The boy rose, shaking his head.

"Uncl' Gabe," he said with sudden passion, "whut ye reckon Rome's a-doin'?"

The miller looked a little petulant. "Don't ye git tired axin' me thet question, Isom? Rome's a-scratchin' right peert fer a livin', I reckon, fer hisself 'n' Marthy. Yes, 'n' mebbe fer a young 'un too by this time. Ef ye air honin' fer Rome, why don't ye rack out 'n' go to him? Lawd knows I'd hate ter see ye go, but I tol' Rome I'd let ye whenever ye got ready, 'n' so I will."

Isom had no answer, and old Gabe was puzzled. It was always this way. The boy longed for Rome, the miller could see. He spoke of him sometimes with tears, and sometimes he seemed to be on the point of going to him, but he shrank inexplicably when the time for leaving came.

Isom started into the mill now without a word, as usual. Old Gabe noticed that his feet were unsteady, and with quick remorse began to question him.

"Kinder puny, hain't ye, Isom?"

"Well, I hain't feelin' much peert."

"Hit was mighty keerless," old Gabe said, with kindly reproach, "swimmin' the crick attar a fresh."

"Hit wasn't the swimmin'," he protested, dropping weakly at the threshold. "Hit was settin' out 'n the woods. I was in Hazlan t'other night, Und' Gabe, to hear the new rider."

The miller looked around with quick interest. "I've been skeered afore by riders a-tellin' 'bout the torments o' hell, but I never heerd nothin' like his tellin' 'bout the Lord. He said the Lord was jes as pore as anybody thar, and lived jes as rough; thet He made fences and barns n' ox-yokes 'n' sech like, an' He couldn't write His own name when He started out to save the worl'; an' when he come to the p'int whar His enemies tuk hol' of Him, the rider jes crossed his fingers up over his head 'n' axed us if we didn't know how it hurt to run a splinter into a feller's hand when he's loggin' or a thorn into yer foot when ye're goin' barefooted."

"Hit jes made me sick, Uncl' Gabe, hearin' him tell how they stretched Him out on a cross o' wood, when He'd come down fer nothin' but to save 'em, 'n' stuck a spear big as a co'n-knife into His side, 'n' give Him vinegar, 'n' let Him hang thar 'n' die, with His own mammy a-stand-in' down on the groun' a-cryin' 'n' watchin' Him. Some folks thar never heerd sech afore. The women was a-rockin', 'n' ole Granny Day axed right out ef thet tuk place a long time ago; 'n' the rider said, 'Yes, a long time ago, mos two thousand years.' Granny was a-cryin', Uncl' Gabe, 'n' she said, sorter soft, 'Stranger, let's hope that hit hain't so'; 'n' the rider says, But hit air so; n' He fergive em while they was doin' it.' Thet's whut got me, Uncl' Gabe, 'n' when the woman got to singin', somethin' kinder broke loose hyeh"—Isom passed his hand over his thin chest—"n' I couldn't git breath. I was mos' afeerd to ride home. I jes layed at the mill studyin', till I thought my head

would bust. I reckon hit was the spent a-work-in me. Looks like I was mos' convicted, Uncl' Gabe." His voice trembled and he stopped. "Crump was a-lyin'," he cried, suddenly. "But hit's wuss, Und' Gabe; hit's wuss! You say a life fer a life in this worl'; the rider says hit's in the next, 'n' I'm mis'ble, Uncl' Gabe. Ef Rome—I wish Rome was hyeh," he cried, helplessly. "I don't know whut to do."

The miller rose and limped within the mill, and ran one hand through the shifting corn. He stood in the doorway, looking long and perplexedly towards Hazlan; he finally saw, he thought, just what the lad's trouble was. He could give him some comfort, and he got his chair and dragged it out to the door across the platform, and sat down in silence.

"Isom," he said at last, "the Spent air shorely a-workin' ye, 'n' I'm glad of it. But ye mus 'n t worry about the penalty a-fallin' on Rome. Steve Marcum killed Jass—he can't fool me—'n' I've told Steve he's got thet penalty to pay ef he gits up this trouble. I'm glad the Spent's a-workin' ye, but ye mus'n' t worry 'bout Rome."

Isom rose suddenly on one elbow, and with a moan lay back and crossed his arms over his face.

Old Gabe turned and left him.

"Git up, Isom." It was the miller's voice again, an hour later. "You better go home now. Ride the hoss, boy," he and, kindly.

Isom rose, and old Gabe helped him mount, and stood at the door. The horse started, but the boy pulled him to a standstill again.

"I want to ax ye jes one thing more, Uncl' Gabe," he said, slowly. "S'posin' Steve had a-killed Jass to keep him from killin' Rome, hev he got to be damned fer it jes the same? Hev he got to give up eternal life anyways? Hain't thar no way out'n it—no way?"

There was need for close distinction now and the miller was deliberate.

"Ef Steve shot Jass," he said, "jes to save Rome's life—he had the right to shoot him. Thar hain't no doubt 'bout that. The law says so. But"—there was a judicial pause—"I've heerd Steve say that he hated Jass wuss' n anybody on earth, 'cept old Brayton; 'n' ef he wus glad o' the chance o' killin' him, why—the Lord air merciful, Isom; the Bible air true, 'n' hit says an 'eye fer an eye, a tooth fer a tooth,' 'n' I never knowed hit to fail—but the Lord air merciful. Ef Steve would only jes repent, 'n' ef, 'stid o' fightin' the Lord by

takin' human life, he'd fight fer Him by savin' it, I reckon the Lord would fergive him. Fer ef ye lose yer life fer Him, He do say you'll find it agin somewhar—sometime."

Old Gabe did not see the sullen despair that came into the boy's tense face. The subtlety of the answer had taken the old man back to the days when he was magistrate, and his eyes were half closed. Isom rode away without a word. From the dark of the mill old Gabe turned to look after him again.

"I'm afeerd he's a-gittin' feverish agin. Hit looks like he's convicted; but"—he knew the wavering nature of the boy—"I don't know—I don't know."

Going home an hour later, the old man saw several mountaineers climbing the path towards Steve Marcum's cabin; it meant the brewing of mischief; and when he stopped at his own gate, he saw at the bend of the road a figure creep from the bushes on one side into the bushes on the other.

It looked like Crump.

III.

IT was Crump, and fifty yards behind him was Isom, slipping through the brush after him—Isom's evil spirit—old Gabe, Raines, "conviction," blood-penalty, forgotten, all lost in the passion of a chase which has no parallel when the game is man.

Straight up the ravine Crump went along a path which led to Steve Marcum's cabin. There was a clump of rhododendron at the head of the ravine, and near Steve's cabin. About this hour Marcum would be chopping wood for supper, or sitting out in his porch in easy range from the thicket. Crump's plan was plain: he was about his revenge early, and Isom was exultant.

"Oh, no, Eli, you won't git Steve this time. Oh, naw!"

The bushes were soon so thick that he could no longer follow Crump by sight, and every few yards he had to stop to listen, and then steal on like a mountain-cat towards the leaves rustling ahead of him. Half-way up the ravine Crump turned to the right and stopped. Puzzled, Isom pushed so close that the spy, standing irresolute on the edge of the path, whirled around. The boy sank to his face, and in a moment footsteps started and grew faint; Crump had darted across the path, and was running through the undergrowth up the spur. Isom rose and hurried after him; and when, panting hard, he reached the top, the spy's skulking figure was sliding from Steve's house and towards the Breathitt road; and with a hot, puzzled face, the boy went down after it.

On a little knob just over a sudden turn in the road Crump stopped, and looking sharply about him, laid his gun down. Just in front of him were two rocks, waist-high, with a crevice between them. Drawing a long knife from his pocket, he climbed upon them, and began to cut carefully away the spreading top of a bush that grew on the other side. Isom crawled down towards him like a lizard, from tree to tree. A moment later the spy was filling up the crevice with stones, and Isom knew what he was about; he was making a "blind" to waylay Steve, who, the boy knew, was going to Breathitt by that road the next Sunday. How did Crump know that—how

did he know everything? The crevice filled, Crump cut branches and stuck them between the rocks. Then he pushed his rifle through the twigs, and taking aim several times, withdrew it. When he turned away at last and started down to the road, he looked back once more, and Isom saw him grinning. Almost chuckling in answer, the lad slipped around the knob to the road the other way, and Crump threw up his gun with a gasp of fright when a figure rose out of the dusk before him.

"Hol' on, Eli!" said Isom, easily. "Don't git skeered! Hit's nobody but me. Whar ye been?"

Crump laughed, so quick was he disarmed of suspicion. "Jes up the river a piece to see Aunt Sally Day. She's a fust cousin o' mine by marriage."

Isom's right hand was slipping back as if to rest on his hip. "D'you say you'd been 'convicted,' Eli?"

Crump's answer was chantlike. "Yes, Lawd reckon I have."

"Goin' to stop all o' yer lyin', air ye," Isom went on, in the same tone, and Crump twitched as though struck suddenly from behind, "an' stealin' 'n' lay-wayin'?"

"Look a-hyeh, boy—" he began, roughly, and mumbling a threat, started on.

"Uh, Eli!" Even then the easy voice fooled him again, and he turned. Isom had a big revolver on a line with his breast. "Drap yer gun!" he said, tremulously.

Crump tried to laugh, but his guilty face turned gray. "Take keer, boy," he gasped; "yer gun's cocked. Take keer, I tell ye!"

"Drap it, damn ye!" Isom called in sudden fury, "'n' git clean away from it!" Crump backed, and Isom came forward and stood with one foot on the fallen Winchester.

"I seed ye, Eli. Been makin' a blind fer Steve, hev ye? Goin' to shoot him in the back, too, air ye? You're ketched at last, Eli. You've done a heap o' devilment. You're gittin' wuss all the time. You oughter be dead, 'n' now—"

Crump found voice in a cry of terror and a whine for mercy. The boy looked at him, unable to speak his contempt.

"Git down thar!" he said, finally; and Crump, knowing what was wanted, stretched himself in the road. Isom sat down on a stone, the big pistol across

one knee.

"Roll over!" Crump rolled at full length.

"Git up!" Isom laughed wickedly. "Ye don't look purty, Eli." He lifted the pistol and nipped a cake of dirt from the road between Crump's feet. With another cry of fear, the spy began a vigorous dance.

"Hol' on, Eli; I don't want ye to dance. Ye belong to the chu'ch now, 'n' I wouldn't have ye go agin yer religion fer nothin'. Stan' still!" Another bullet and another cut between Crump's feet. "'Pears like ye don't think I kin shoot straight. Eli," he went on, reloading the empty chambers, "some folks think I'm a idgit, 'n' I know 'em. Do you think I'm a idgit, Eli?"

"Actin' mighty nateral now." Isom was raising the pistol again. "Oh, Lawdy! Don't shoot, boy—don't shoot!

"Git down on yer knees! Now I want ye to beg fer mercy thet ye never showed—thet ye wouldn't 'a' showed Steve... Purty good," he said, encouragingly.

"Mebbe ye kin pray a leetle, seem' ez ye air a chu'ch member. Pray fer yer enemies, Eli; Uncl' Gabe says ye must love yer enemies. I know how ye loves me, 'n' I want yer to pray fer me. The Lawd mus' sot a powerful store by a good citizen like you. Ax him to fergive me fer killin' ye."

"Have mercy, O Lawd," prayed Crump, to command—and the prayer was subtle—"on the murderer of this Thy servant. A life fer a life, Thou hev said, O Lawd. Fer killin' me he will foller me, 'n' ef Ye hev not mussy he is boun' fer the lowes' pit o' hell, O Lawd—"

It was Isom's time to wince now, and Crump's pious groan was cut short.

"Shet up!" cried the boy, sharply, and he sat a moment silent. "You've been a-spyin' on us sence I was borned, Eli," he said, reflectively.

"I believe ye lay-wayed dad. Y'u spied on Rome. Y'u told the soldiers whar he was a-hidin' Y'u tried to shoot him from the bresh. Y'u found out Steve was goin' to Breathitt on Sunday, 'n' you've jes made a blind to shoot him in the back. I reckon thar's no meanness ye hain't done. Dad's al'ays said ye sot a snare fer a woman once—a woman! Y'u loaded a musket with slugs, 'n' tied a string to the trigger, 'n' stretched hit 'cross the path, 'n' y'u got up on a cliff 'n' whistled to make her slow up jes when she struck the string. I reckon thet's yer wust—but I don't know."

Several times Crump raised his hands in protest while his arraignment was going on; several times he tried to speak, but his lips refused utterance. The boy's voice was getting thicker and thicker, and he was nervously working the cock of the big pistol up and down.

"Git up," he said; and Crump rose with a spring. The lad's tone meant release.

"You hain't wuth the risk. I hain't goin' ter kill ye. I jus' wanted ter banter ye 'n' make ye beg. You're a good beggar, Eli, 'n' a powerful prayer. You'll be a shinin' light in the chu'ch, ef ye gits a chance ter shine long. Fer lemme tell ye, nobody ever ketched ye afore. But you're ketched now, an' I'm goin' to tell Steve. He'll be a-watchin' fer ye, 'n' so 'll I. I tell ye in time, ef ye ever come over hyeh agin as long as you live, you'll never git back alive. Turn roun'! Hev ye got any balls?" he asked, feeling in Crump's pockets for cartridges. "No; well"—he picked up the Winchester and pumped the magazine empty—"I'll keep these," he said, handing Crump the empty rifle. "Now git away—an' git away quick!"

Crump's slouching footsteps went out of hearing, and Isom sat where he was. His elbows dropped to his knees. His face dropped slowly into his hands, and the nettles of remorse began to sting. He took the back of one tremulous hand presently to wipe the perspiration from his forehead, and he found it burning. A sharp pain shot through his eyes. He knew what that meant, and feeling dizzy, he rose and started a little blindly towards home.

Old Gabe was waiting for him. He did not answer the old man's querulous inquiry, but stumbled towards a bed. An hour later, when the miller was rubbing his forehead, he opened his eyes, shut them, and began to talk.

"I reckon I hain't much better 'n Eli, Und' Gabe," he said, plaintively. "I've been abusin' him down thar in the woods. I come might' nigh killin' him onct." The old man stroked on, scarcely heeding the boy's words, so much nonsense would he talk when ill.

"I've been lyin' to ye, Uncl' Gabe, 'n' a-deceivin' of ye right along. Steve's a-goin' atter ole Brayton—I'm goin' too—Steve didn't kill Jass—hit wusn't Steve—hit wusn't Rome—hit was—" The last word stopped behind his shaking lips; he rose suddenly in bed, looked wildly into the miller's startled face, and dropping with a sob to the bed, went sobbing to sleep.

Old Gabe went back to his pipe, and while he smoked, his figure shrank slowly in his chair. He went to bed finally, but sleep would not come, and he rose again and built up the fire and sat by it, waiting for day. His own doctrine, sternly taught for many a year, had come home to him; and the miller's face when he opened his door was gray as the breaking light.

IV.

THERE was little peace for old Gabe that day at the mill. And when he went home at night he found cause for the thousand premonitions that had haunted him. The lad was gone.

A faint light in the east was heralding the moon when Isom reached Steve Marcum's gate. There were several horses hitched to the fence, several dim forms seated in the porch, and the lad halloed for Steve, whose shadow shot instantly from the door and came towards him.

"Glad ter see ye, Isom," he called, jubilantly. "I was jus' about to sen' fer ye. How'd ye happen to come up?"

Isom answered in a low voice with the news of Crump's "blind," and Steve laughed and swore in the same breath.

"Come hyeh!" he said, leading the way back; and at the porch he had Isom tell the story again.

"Whut d' I tell ye, boys?" he asked, triumphantly. "Don't believe ye more 'n half believed me."

Three more horsemen rode up to the gate and came into the light. Every man was armed, and at Isom's puzzled look, Steve caught the lad by the arm and led him around the chimney-corner. He was in high spirits.

"Pears like ole times, Isom. I'm a-goin' fer thet cussed ole Steve Brayton this very night. He's behind Crump. I s'picioned it afore; now I know it for sartain. He's a-goin' to give Eli a mule 'n' a Winchester fer killin' me. We're goin' to s'prise him to-night. He won't be look-in' fer us—I've fixed that. I was jus' about to sen' fer ye. I hain't fergot how ye kin handle a gun." Steve laughed significantly. "Ye're a good frien' o' mine, 'n' I'm goin' to show ye thet I'm a frien' o' yourn."

Isom's paleness was unnoticed in the dark. The old throbbing began to beat again at his temple; the old haze started from his eyes.

"Hyeh's yer gun, Isom," he heard Steve saying next. The fire was blazing into his face. At the chimney-corner was the bent figure of old Daddy Marcum, and across his lap shone a Winchester. Steve was pointing at it, his

grim face radiant; the old man's toothless mouth was grinning, and his sharp black eyes were snapping up at him.

"Hit's yourn, I tell ye," said Steve again. "I aimed jes to lend it to ye, but ye've saved me frum gittin' killed, mebbe, 'n' hit's yourn now—yourn, boy, fer keeps."

Steve was holding the gun out to him now. The smooth cold touch of the polished barrel thrilled him. It made everything for an instant clear again, and feeling weak, Isom sat down on the bed, gripping the treasure in both trembling hands. On one side of him some one was repeating Steve's plan of attack. Old Brayton's cabin was nearly opposite, but they would go up the river, cross above the mill, and ride back. The night was cloudy, but they would have the moonlight now and then for the climb up the mountain. They would creep close, and when the moon was hid they would run in and get old Brayton alive, if possible. Then—the rest was with Steve.

Across the room he could hear Steve telling the three new-comers, with an occasional curse, about Crump's blind, and how he knew that old Brayton was hiring Crump.

"Old Steve's meaner 'n Eli," he said to himself, and a flame of the old hate surged up from the fire of temptation in his heart. Steve Marcum was his best friend; Steve had shielded him. The boy had promised to join him against old Brayton, and here was the Winchester, brand-new, to bind his word.

"Git ready, boys; git ready."

It was Steve's voice, and in Isom's ears the preacher's voice rang after it. Again that blinding mist before his eyes, and the boy brushed at it irritably. He could see the men buckling cartridge-belts, but he sat still. Two or three men were going out. Daddy Marcum was leaning on a chair at the door, looking eagerly at each man as he passed.

"Hain't ye goin', Isom?"

Somebody was standing before him twirling a rifle on its butt, a boy near Isom's age. The whirling gun made him dizzy.

"Stop it!" he cried, angrily. Old Daddy Marcum was answering the boy's question from the door.

"Isom goin'?" he piped, proudly. "I reckon he air. Whar's yer belt, boy? Git ready. Git ready."

Isom rose then—he could not answer sitting down—and caught at a bedpost with one hand, while he fumbled at his throat with the other.

"I hain't goin'."

Steve heard at the door, and whirled around. Daddy Marcum was tottering across the floor, with one bony hand uplifted.

"You're a coward!" The name stilled every sound. Isom, with eyes afire, sprang at the old man to strike, but somebody caught his arm and forced him back to the bed.

"Shet up, dad," said Steve, angrily, looking sharply into Isom's face. "Don't ye see the boy's sick? He needn't go ef he don't want to. Time to start, boys."

The tramp of heavy boots started across the puncheon floor and porch again. Isom could hear Steve's orders outside; the laughs and jeers and curses of the men as they mounted their horses; he heard the cavalcade pass through the gate, the old man's cackling good-by; then the horses' hoofs going down the mountain, and Daddy Marcum's hobbling step on the porch again. He was standing in the middle of the floor, full in the firelight, when the old man reached the threshold—standing in a trance, with a cartridge-belt in his hand.

"Good fer you, Isom—"

The cry was apologetic, and stopped short.

"The critter's fersakcn," he quavered, and cowed by the boy's strange look, the old man shrank away from him along the wall. But Isom seemed neither to see nor hear. He caught up his rifle, and, wavering an instant, tossed it with the belt on the bed and ran out the door. The old man followed, dumb with amazement.

"Isom!" he called, getting his wits and his tongue at last. "Hyeh's yer gun! Come back, I tell ye! You've fergot yer gun! Isom! Isom!"

The voice piped shrilly out into the darkness, and piped back without answer.

A steep path, dangerous even by day, ran snakelike from the cabin down to the water's edge. It was called Isom's path after that tragic night. No mountaineer went down it thereafter without a firm faith that only by the direct help of Heaven could the boy, in his flight down through the dark, have reached the river and the other side alive. The path dropped from ledge

to ledge, and ran the brink of precipices and chasms. In a dozen places the boy crashed through the undergrowth from one slippery fold to the next below, catching at roots and stones, slipping past death a score of times, and dropping on till a flood of yellow light lashed the gloom before him. Just there the river was most narrow; the nose of a cliff swerved the current sharply across, and on the other side an eddy ran from it up stream. These earthly helps he had, and he needed them.

There had been a rain-storm, and the waves swept him away like thistle-down, and beat back at him as he fought through them and stood choked and panting on the other shore. He did not dare stop to rest. The Marcums, too, had crossed the river up at the ford by this time, and were galloping towards him; and Isom started on and up. When he reached the first bench of the spur the moon was swinging over Thunderstruck Knob. The clouds broke as he climbed; strips of radiant sky showed between the rolling masses, and the mountain above was light and dark in quick succession. He had no breath when he reached the ledge that ran below old Steve's cabin, and flinging one arm above it, he fell through sheer exhaustion. The cabin was dark as the clump of firs behind it; the inmates were unsuspecting; and Steve Marcum and his men were not far below. A rumbling started under him, while he lay there and grew faint—the rumble of a stone knocked from the path by a horse's hoof. Isom tried to hallo, but his voice stopped in a whisper, and he painfully drew himself upon the rock, upright under the bright moon. A quick oath of warning came then—it was Crump's shrill voice in the Brayton cabin—and Isom stumbled forward with both hands thrown up and a gasping cry at his lips. One flash came through a port-hole of the cabin. A yell broke on the night—Crump's cry again—and the boy swayed across the rock, and falling at the brink, dropped with a limp struggle out of sight.

V.

THE news of Isom's fate reached the miller by way of Hazlan before the next noon. Several men in the Brayton cabin had recognized the boy in the moonlight. At daybreak they found bloodstains on the ledge and on a narrow shelf a few feet farther down. Isom had slipped from one to the other, they said, and in his last struggle had rolled over into Dead Creek, and had been swept into the Cumberland.

It was Crump who had warned the Braytons. Nobody ever knew how he had learned Steve Marcum's purpose. And old Brayton on his guard and in his own cabin was impregnable. So the Marcums, after a harmless fusillade, had turned back cursing. Mocking shouts followed after them, pistol-shots, even the scraping of a fiddle and shuffling on the ledge. But they kept on, cursing across the river and back to Daddy Marcum, who was standing in the porch, peering for them through the dawn, with a story to tell about Isom.

"The critter was teched in the head," the old man said, and this was what the Braytons, too, believed. But Steve Marcum, going to search for Isom's body next day, gave old Gabe another theory. He told the miller how Daddy Marcum had called Isom a coward, and Steve said the boy had gone ahead to prove he was no coward.

"He had mighty leetle call to prove it to me. Think o' his takin' ole Brayton all by hisself!" he said, with a look at the yellow, heaving Cumberland. "'N', Lord! think o' his swimmin' that river in the dark!"

Old Gabe asked a question fiercely then and demanded the truth, and Steve told him about the hand-to-hand fight on the mountain-side, about young Jasper's treachery, and how the boy, who was watching the fight, fired just in time to save Rome. It made all plain at last—Rome's and Steve's denials, Isom's dinning on that one theme,' and why the boy could not go to Rome and face Martha, with her own blood on his hands. Isom's true motive, too, was plain, and the miller told it brokenly to Steve, who rode away with a low whistle to tell it broadcast, and left the old man rocking his body like a woman.

An hour later he rode back at a gallop to tell old Gabe to search the river bank below the mill. He did not believe Isom dead. It was just his feelin', he said, and one fact, that nobody else thought important—the Brayton canoe was gone.

"Ef he was jus' scamped by a ball," said Steve, "you kin bet he tuk the boat, 'n' he's down thar in the bushes somewhar now waitin' fer dark."

And about dusk, sure enough, old Gabe, wandering hopefully through the thicket below the mill, stumbled over the canoe stranded in the bushes. In the new mud were the tracks of a boy's bare feet leading into the thicket, and the miller made straight for home. When he opened his door he began to shake as if with palsy. A figure was seated on the hearth against the chimney, and the firelight was playing over the face and hair. The lips were parted, and the head hung limply to the breast. The clothes were torn to rags, and one shoulder was bare. Through the upper flesh of it and close to the neck was an ugly burrow clotted with blood. The boy was asleep.

Three nights later, in Hazlan, Sherd Raines told the people of Isom's flight down the mountain, across the river, and up the steep to save his life by losing it. Before he was done, one gray-headed figure pressed from the darkness on one side and stood trembling under the dips. It was old Steve Brayton, who had fired from the cabin at Isom, and dropping his Winchester, he stumbled forward with the butt of his pistol held out to Raines. A Marcum appeared on the other side with the muzzle of his Winchester down. Raines raised both hands then and imperiously called on every man who had a weapon to come forward and give it up. Like children they came, Marcums and Braytons, piling their arms on the rock before him, shaking hands right and left, and sitting together on the mourner's bench.

Old Brayton was humbled thereafter. He wanted to shake hands with Steve Marcum and make friends. But Steve grinned, and said, "Not yit," and went off into the bushes. A few days later he went to Hazlan of his own accord and gave up his gun to Raines. He wouldn't shake hands with old Brayton, he said, nor with any other man who would hire another man to do his "killin'"; but he promised to fight no more, and he kept his word.

A flood followed on New Year's day. Old Gabe's canoe—his second canoe—was gone, and a Marcum and a Brayton worked side by side at the mill hollowing out another. The miller sat at the door whittling.

"Pears like folks is havin' bad luck with thar dugouts," said Brayton. "Some triffin' cuss took old Steve Brayton's jes to cross the river, without the grace to tie it to the bank, let 'lone takin' it back. I've heard ez how Aunt Sally Day's boy Ben, who was a-fishin' that evenin, says ez how he seed Isom's harnt a-floatin' across the river in it, without techin' a paddle."

The Marcum laughed. "Idgits is thick over hyeh," he said. "Ben's a-gittin' wuss sence Isom was killed. Yes, I recollect Gabe hyeh lost a canoe jus' atter a flood more'n a year ago, when Rome Stetson 'n' Marthy Lewallen went a-gallivantin' out' n the mountains together. Hyeh's another flood, 'n' old Gabe's dugout gone agin." The miller raised a covert glance of suspicion from under his hat, but the Marcum was laughing. "Ye oughter put a trace-chain on this un," he added. "A rope gits rotten in the water, 'n' a tide is mighty apt to break it."

Old Gabe said that "mebbe that wus so," but he had no chain to waste; he reckoned a rope was strong enough, and he started home.

"Old Gabe don't seem to keer much now 'bout Isom," said the Brayton. "Folks say he tuk on so awful at fust that hit looked like he wus goin' crazy. He's gittin' downright peert again. Hello!"

Bud Vickers was carrying a piece of news down to Hazlan, and he pulled up his horse to deliver it. Aunt Sally Day's dog had been seen playing in the Breathitt road with the frame of a human foot. Some boys had found not far away, behind a withered "blind," a heap of rags and bones. Eli Crump had not been seen in Hazlan since the night of the Marcum raid.

"Well, ef hit was Eli," said the Brayton, waggishly, "we're all goin' to be saved. Eli's case 'll come fust, an' ef thar's only one Jedgment Day, the Lord 'll niver git to us."

The three chuckled, while old Gabe sat dreaming at his gate. The boy had lain quiet during the weeks of his getting well, absorbed in one aim—to keep hidden until he was strong enough to get to Rome. On the last night the miller had raised one of the old hearth-stones and had given him the hire of many years. At daybreak the lad drifted away. Now old Gabe was following him down the river and on to the dim mountain line, where the boy's figure was plain for a moment against the sky, and then was lost.

The clouds in the west had turned gray and the crescent had broken the gloom of the woods into shadows when the miller rose. One star was coming over Black Mountain from the east. It was the Star of Bethlehem to

old Gabe; and, starlike on both sides of the Cumberland, answering fires from cabin hearths were giving back its message at last.

"Thar hain't nothin' to hender Rome 'n' Marthy now. I nuver knowed anybody to stay 'way from these mount'ins ef he could git back; 'n' Isom said he'd fetch 'em. Thar hain't nothin' to hender—nothin' now."

On the stoop of the cabin the miller turned to look again, and then on the last Stetson the door was closed.

THE END

*** END OF THE PROJECT GUTENBERG EBOOK THE LAST
STETSON ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.